

CHICKASAW TRIBAL LEGISLATURE

**Permanent Resolution Number 10-25
Authorization for Self Governance Compact Negotiations**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the governor shall perform all duties appertaining to the office of chief executive. He shall sign official papers on behalf of the nation, and

WHEREAS, a request for authorization to negotiate for, and to enter into, a self governance compact has come before the Tribal Legislature from Governor Bill Anoatubby, and

WHEREAS, it is the intent of the Tribal Legislature that the Governor proceed with extreme caution in negotiating the terms of the compact, as the compact will affect the entire Chickasaw Nation for all time, and

WHEREAS, it is the intent of the Tribal Legislature that the people of the Chickasaw Nation be kept fully informed of the specific terms of the compact and that their concerns be addressed by the legislators who represent them, and

WHEREAS, the requirements of the Bureau of Indian Affairs for the Tribal Self-Governance Demonstration Project must be satisfied as well, and

WHEREAS, there is a concern that the infrastructure of the Chickasaw Nation is such that the tribe is not yet ready for self-governance, lacking vital elements such as, but not limited to, a criminal code, a civil code, and a court system.

NOW, THEREFORE, BE IT RESOLVED, that Chickasaw Nation Governor Bill Anoatubby shall negotiate a compact with the United States of America, U.S. Department of the Interior, Bureau of Indian Affairs, for the Chickasaw Nation's Tribal Self-governance Demonstration Project.

BE IT FURTHER RESOLVED, that, because of the inadequacies extant within the Chickasaw Nation which leave the nation vulnerable to fraud and mismanagement, all the federal funds addressed by and associated with this compact shall be budgeted and audited, and said budget and audit shall be approved by the Tribal Legislature.

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There shall be no transfer, allocation, or expending of any amount of these federal funds, by any person(s) at any time, without direct authorization and approval, by resolution, of the Tribal Legislature.

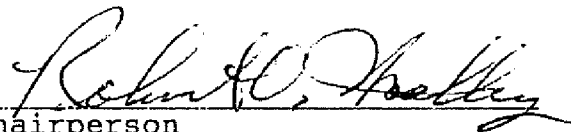
BE IT STILL FURTHER RESOLVED, that any relations conducted with the Chickasaw Nation by the Department of the Interior will directly include the Tribal Legislature in the government-to-government basis.

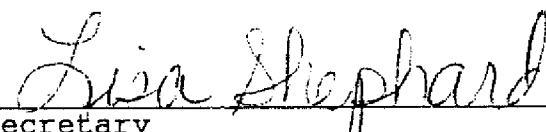
BE IT STILL FURTHER RESOLVED, that the terms of the compact shall first be presented to the Tribal Legislature.

BE IT STILL FURTHER RESOLVED, that the terms of the compact shall then be presented to the people of the Chickasaw Nation, in print and in public meetings, the means by which the printing and distribution shall be accomplished to be determined by the Tribal Legislature, for the information of the people of the Chickasaw Nation.

BE IT STILL FURTHER RESOLVED, that the Tribal Legislature shall only then determine whether to approve the terms of the compact and whether to authorize the Governor to enter into said compact.

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on June 18, 1993, by a vote of 10 ayes, 2 nays, and 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur

Date: _____

INTENTIONALLY
UNSIGNED